

NEW YORK STATE SUPREME COURT
COUNTY OF KINGS

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SASHA SAWH,

Plaintiff,

-against-

SUMMONS
Index#

CITY OF NEW YORK; POLICE OFFICER CHARLES
ARNONE (Shield # 03642); POLICE OFFICERS JOHN
DOE #1-5,

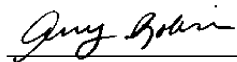
Defendants
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To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Plaintiff designates Kings County as the place of trial. The basis of venue is the place of plaintiff's residence which is Kings County.

Dated: Brooklyn, New York
June 12th, 2018



Amy E. Robinson, Esq.
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718 852 3710
Attorney for Plaintiff

NEW YORK STATE SUPREME COURT
COUNTY OF KINGS

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SASHA SAWH,

Plaintiff, **COMPLAINT &
JURY DEMAND**

-against-

CITY OF NEW YORK; POLICE OFFICER CHARLES
ARNONE (Shield # 03642); POLICE OFFICERS JOHN
DOE #1-5,

Defendants.

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PRELIMINARY STATEMENT

1. This is a civil rights action in which Plaintiff seeks relief through 42 U.S.C. § 1983 for the violation of her Fourth and Fourteenth Amendment rights, and the laws and Constitution of the State of New York.

2. The claim arises from a March 24, 2017 incident in which New York City Police Department (“NYPD”) officers of the 71st Precinct, acting under color of state law, violated Ms. Sawh’s rights.

3. Plaintiff seeks monetary damages (special, compensatory, and punitive) against Defendants, as well as an award of costs and attorneys’ fees, and such other and further relief as the Court deems just and proper.

PARTIES

4. Plaintiff SASHA SAWH is a resident of Kings County, New York.

5. The CITY OF NEW YORK (“City”) is a municipal corporation organized under the laws of the State of New York. At all times relevant hereto, Defendant City, acting through the

NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention, and conduct of all NYPD personnel. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

6. Defendant POLICE OFFICER CHARLES ARNONE (Shield # 03642) was at all times here relevant a police officer of the NYPD, and as such was acting in the capacity of agent, servant, and employee of the City of New York. On information and belief, at all times here relevant, Officer Arnone was involved in the decision to arrest Plaintiff without probable cause or failed to intervene in the actions of his fellow officers when he observed them arresting Plaintiff without probable cause. He is sued in his individual capacity.

7. Defendants POLICE OFFICERS JOHN DOE ##1-5 were, at all times here relevant, police officers of the NYPD, and as such were acting in the capacity of agents, servants, and employees of the City of New York. At all times here relevant, the John Doe Defendants, whose true names are currently unknown to Plaintiff, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene in the actions of their fellow officers when they observed their fellow officers arresting Plaintiff without probable cause. The John Doe Defendants are sued in their individual capacities.

8. At all times here mentioned Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

NOTICE OF CLAIM

9. Within 90 days of the events giving rise to these claims, Plaintiff filed a written Notice of Claim with the New York City Office of the Comptroller. Over 30 days have elapsed since the filing of the Notice, and this matter has not been settled or otherwise disposed of.

FACTUAL ALLEGATIONS

10. On March 24, 2017, at approximately 5:00 A.M., Plaintiff Sasha Sawh was asleep in her bed inside of 1054 Eastern Parkway, Apartment A7, in Brooklyn, NY.

11. Ms. Sawh's five year-old daughter was lying asleep next to her.

12. All of a sudden, Ms. Sawh heard loud banging outside of her bedroom door and saw flashing lights. Then, without warning, several police officers employed by the NYPD, including Officer Arnone and the John Doe officers, entered Plaintiff's bedroom with their guns drawn.

13. The officers pointed their gun in Plaintiff's face and in Plaintiff's daughter's face. Plaintiff was terrified for her life and her daughter's life.

14. Officer Arnone and the John Doe officers immediately arrested and handcuffed Plaintiff.

15. Plaintiff had committed no crime.

16. Ms. Sawh and her young daughter were taken to the 71st precinct, where they were held all day without any legal justification. Plaintiff remained in handcuffs at the precinct.

17. Ms. Sawh was eventually released on the evening of March 24, 2017.

18. When Plaintiff returned to her home on Eastern Parkway, she discovered that the officers had caused extensive damage to her home and personal property.

19. Several days later, Plaintiff received a Desk Appearance Ticket ("DAT") in the mail.

20. Plaintiff appeared in court in June, as instructed on the DAT, but was told her case was not ready.

21. Several months later, Plaintiff was informed that the Kings County District Attorney's Office was declining to prosecute her. All charges against Plaintiff were dismissed.

22. At all times during the events described above, the defendant officers were engaged in a joint venture and formed an agreement to violate Plaintiff's rights by arresting Ms. Sawh without probable cause. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during said events. They failed to intervene in the obviously illegal actions of their fellow officers against Plaintiff.

23. During all of the events above described, Defendants acted maliciously and with intent to injure Plaintiff.

DAMAGES

24. As a direct and proximate result of the acts of Defendants, Plaintiff suffered the following injuries and damages:

- a. Violation of her rights pursuant to the Fourth and Fourteenth Amendments to the United States Constitution;
- b. Violation of her rights under Article I of the New York State Constitution;
- c. Damage to her property;
- d. Emotional trauma and suffering, including fear, terror, embarrassment, humiliation, frustration, extreme inconvenience, shame, and anxiety;
- e. Economic loss; and
- f. Deprivation of her liberty.

FIRST CAUSE OF ACTION

42 U.S.C. § 1983

25. The above paragraphs are here incorporated by reference.

26. The officer defendants wrongfully, illegally, and unjustifiably detained, arrested, imprisoned, and falsely charged Plaintiff, depriving her of her liberty.

27. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, prosecution and imprisonment of Plaintiff were carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

28. All of this occurred without any illegal conduct by Plaintiff.

29. All charges against Plaintiff were dismissed.

30. By pointing their guns at Plaintiff, the defendants used excessive force against her, and failed to intervene in each other's obviously illegal actions.

31. Defendants have deprived Plaintiff of her civil, constitutional and statutory rights and have conspired to deprive her of such rights, and are liable to Plaintiff under 42 U.S.C. § 1983, New York State common law, and the New York State Constitution.

32. Plaintiff was damaged as a result of defendants' wrongful acts.

SECOND CAUSE OF ACTION

FALSE IMPRISONMENT

33. The above paragraphs are here incorporated by reference.

34. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

35. Defendants intended to confine Plaintiff, Plaintiff was conscious of her confinement, and did not consent to the confinement.

36. The confinement was not privileged.

37. Defendants, their officers, agents, servants and employees, were responsible for Plaintiff's detention and imprisonment during this period of time.

38. The charges against Plaintiff were dismissed.

39. As a direct and proximate result of the misconduct and the abuse of authority detailed above, Plaintiff sustained the damages described above.

THIRD CAUSE OF ACTION
ASSAULT

40. The above paragraphs are here incorporated by reference.

41. By pointing their guns at Plaintiff, the defendants made Plaintiff fear for her physical well-being and safety and placed her in apprehension of immediate harmful and/or offensive touching.

42. As a direct and proximate result of the misconduct and the abuse of authority detailed above, Plaintiff sustained the damages described above.

FOURTH CAUSE OF ACTION
RESPONDEAT SUPERIOR

43. The above paragraphs are here incorporated by reference.

44. Defendants' tortious acts were undertaken within the scope of their employment by defendant City of New York and in furtherance of the defendant City of New York's interest.

45. As a result of Defendants' tortious conduct in the course of their employment and in furtherance of the business of defendant City of New York, Plaintiff was damaged.

WHEREFORE, Plaintiff demands judgment against Defendants as follows:

- a. On the First Cause of Action, compensatory and punitive damages in sums which exceed the jurisdictional limits of all lower courts, plus costs, disbursements and reasonable attorneys' fees;
- b. On the Second Cause of Action, compensatory and punitive damages in sums which exceed the jurisdictional limits of all lower courts, plus costs, disbursements and reasonable attorneys' fees;
- c. On the Third Cause of Action, compensatory and punitive damages in sums which exceed the jurisdictional limits of all lower courts, plus costs, disbursements and reasonable attorneys' fees;
- d. On the Fourth Cause of Action, compensatory and punitive damages in sums which exceed the jurisdictional limits of all lower courts, plus costs, disbursements and reasonable attorneys' fees;
- e. For such other relief as this court deems just and proper.

JURY DEMAND

Plaintiff demands a trial by jury.

DATED: June 11, 2018
Brooklyn, New York

Respectfully yours,



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